

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125R0014

☒ **ORIGINAL**

☐ **ADDENDUM (attach copy of original J&A for add-ons or revisions)**

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
3. The supplies required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	OPTIONS	EST. VALUE	AMSC
Coupling, Shaft, Flex	3010-010924741	1 each	100%	\$ [REDACTED]	3/D

Identify end item, weapon system, or class of item: Ship, Ohio Class SSN (Trident)

The solicitation is for a DLA Direct Requirement, PR 7005988614, WSIC: F, WSDC: 23N

ESTIMATED BASE VALUE

Base Qty of 1 each; \$ [REDACTED]

ESTIMATED TOTAL VALUE (BASE + OPTIONS)

Total qty of 2 each; \$ [REDACTED]

4. The statutory authority permitting other than full and open competition is:
☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.

5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
Curtiss-Wright Electro-Mechanical (0UBG9) P/N 11356-C-18D and Reliance Electric Company DBA (71956) P/N C5159GREVG are uniquely qualified because they are the only known source with the data or rights to the data necessary to manufacture this item.

The use of the authority cited below:

☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

Controlled by: DLA Land and Maritime
Controlled by: FLSC
CUI Category: PROCURE/SSI
Distribution/Dissemination Control: FED ONLY
POC: [REDACTED]@dla.mil

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125R0014

The use of the authority cited is based on:

[X] *AMSC D*. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

[X] The acquisition will be synopsized for 15 days on SAM.gov prior to the solicitation opening.

[] Manufacturers of similar products identified in the market research will be solicited.

[] Dealers of the manufacturers will be solicited.

[] A synopsis exception cited in FAR 5.202 applies. (explain)

[] Other. (Explain)

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. Cost or pricing data in accordance with FAR 15.403-4 will be requested if the offeror's proposal exceeds the \$2M threshold for obtaining cost data, however, it is anticipated that this procurement will not exceed that threshold. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.

8. Market Research/Efforts to Obtain Competition:

- The PO history shows multiple past award:

Smart Number (PIIN)	Source Type	TIC	Vendor CAGE Code	Vendor Name	Quantity	Unit	Net Price	Curr	Per	Award Date	Incoterms	Prc Reas	SAP PO No.	Wgt Avg	Surplus Material
SPE7L323P2803P00001 A		K	79343	ASRC FEDERAL FACILITIES LOGISTICS, LLC	1.000	EA	248976.00000	USD	1	1/29/2023	1	BG	8509666638		N
SPE7L321P1696 A			79343	ASRC FEDERAL FACILITIES LOGISTICS, LLC	1.000	EA	224609.52000	USD	1	1/7/2021	1	BI	8507898983		N
SPM7L213M5041P0000: A			79343	ASRC FEDERAL FACILITIES LOGISTICS, LLC	1.000	EA	135817.45000	USD	1	5/1/2013	2	BI	4524371056		N

- A sources sought was posted on 11-6-24 and was posted for 5 business days.

- Received sources sought response from BHPE LLC, Cage: 9SWS7. They are not an approved source. I responded to their email and provided them the SAR's guide to become an approved source.

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

[X] A market survey was conducted on 11-5-24.

Total number of vendors contacted: 3.

Names of vendors contacted and responding:

1. Reliance Electric Company (71956)- No response.
2. Curtiss-Wright Electro-Mechanical (0UBG9)- No response.
3. ASRC Federal Facilities Logistics (79343)- Responded 11-5-24

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125R0014

Techniques used to conduct survey: E-mail correspondence.

Types of information requested:

- Business size.
- Manufacturer or dealer.
- Commerciality.
- Price breaks.
- Minimum order quantity.
- Estimated delivery.

Summary of information received: On November 5th ASRC Federal Facilities Logistics (79343) responded to the market survey. They provided the information below.

- Business size: Small
- Manufacturer or dealer: Dealer
- Commerciality: No
- [REDACTED]
- [REDACTED]
- [REDACTED]

Information received regarding the commerciality of the item(s): The market survey received back from ASRC states NSN 7005988614 is not a commercial item.

- No results were returned on GSA or CID database. Market research did not yield any readily available published catalog price lists, schedules, or other form of commercial pricing that are regularly maintained and updated by a manufacturer or vendor, and that are available to the general public for inspection. There is no evidence of sale prices at which sales were made to a significant number of buyers constituting the general public. Therefore, the Contracting Officer determines this item to be non-commercial, thus FAR 15 procedures will be utilized.

9. Additional facts supporting other than full and open competition are:

[X] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is: ASRC Federal Facilities Logistics responded to the market survey stating they would be interested in providing a quote.

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125R0014

11. The following actions are being taken to identify additional sources:

- ☒ Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items
- ☒ Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items
- ☐ VE Bailment Program
- ☐ Source Development Review
- ☐ Reverse Engineering
- ☐ Other (Explain)

12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification. Reviewed records management prior PO's for prior J&A and there were none.

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

WHITING.MONICA.L. Digitally signed by
WHITING.MONICA.L.1378381815
Date: 2024.12.05 07:42:28 -05'00'
1378381815

Contracting Officer

Date

APPROVAL REQUIREMENTS

- | | |
|---|---|
| ☒ Up to \$750,000 | Contracting Officer |
| ☐ \$750,000 to \$15,000,000 | Competition Advocate |
| ☐ Over \$15,000,000 to \$100,000,000 | Head of Contracting Activity (HCA) |
| ☐ Over \$100,000,000 | Senior Procurement Executive (AQ)
(DLA General Counsel signature line required when sending to AQ) |

Attachment(s):

Attachment 1: Tech Certification Memo